SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 5865 of 2021 (YEAR: 2021)

CORAM: R.F. NARIMAN, B.R. GAVAI

Amazon.com NV Investment Holdings LLC
... Appellant(s) / Petitioner(s)
Versus
Future Retail Ltd.
... Respondent(s)

Acts Referred:	Arbitration and Conciliation Act, 1996
Sections:	Section 17 Arbitration Act, Section 9 Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Held that interim orders passed by an Emergency Arbitrator under institutional arbitration rules are enforceable in Indian courts under Section 17(2).

RATIO DECIDENDI

The Court held that: Held that interim orders passed by an Emergency Arbitrator under institutional arbitration rules are enforceable in Indian courts under Section 17(2). It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Amazon.com NV Investment Holdings LLC v. Future Retail Ltd. (Civil Appeal No. 5865 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Arbitration and Conciliation Act, 1996, particularly Section 17 Arbitration Act, Section 9 Arbitration Act. Held that interim orders passed by an Emergency Arbitrator under institutional arbitration rules are enforceable in Indian courts under Section 17(2).

OPERATIVE ORDER

ORDER: Decided